the tax on the business "of selling, or making any charge for, advertising or for advertisements."

It is not essential to liberty of speech and freedom of the press, as constitutionally understood, that profit be derived from the exercise of these rights. Nor was it ever contemplated that the constitutional guarantee should extend to charging for and selling advertising.

In fact, the constitutional guarantee is limited to the right of the citizen to speak and publish his views, subject to punishment for the abuse of that privilege. Liberty of speech and of the press is not an absolute right. *Near* v. *Minnesota,* 283 U. S. 697.

Appellees rely also upon § 3 of Art. 1 of the Constitution of Louisiana. The highest court of Louisiana has already construed that provision as not affording an exemption from taxation. *New Orleans* v. *Crescent Newspaper,* 14 La. Ann. 804.

The state statute does not censure or restrict the free expression of opinions. It merely requires of those who engage in the profitable business of making others pay for the expression of their views, or for advertising their business, a small contribution for the support of government.

There was no denial of equal protection.

Messrs. Esmond Phelps and *Elisha Hanson,* with whom *Messrs. Bennett C. Clark, J. J. Davidson, Jr., Eberhard P. Deutsch, Ben B. Taylor,* and *John H. Tucker, Jr.,* were on the brief, for appellees.

The District Court had jurisdiction to determine the questions presented.

The case presented called for the exercise of jurisdiction by a court of equity.

The statute violates the provisions of § 8 of Art. X of the Constitution of Louisiana of 1921, which requires that license taxes must be levied on all persons engaged in the trade, business, occupation, vocation or profession upon which a license tax is imposed.